

ADDENDUM

Enactments directly pertinent to this matter follow:

Constitutional provisions:

No person shall be a Senator or Representative in Congress, or elector of President and Vice-President, or **hold any office, civil or military, under the United States**, or under any State, **who, having previously taken an oath**, as a member of Congress, or **as an officer of the United States**, or as a member of any State legislature, or as an executive or judicial officer of any State, **to support the Constitution of the United States, shall have engaged in insurrection** or rebellion against the same, or given aid or comfort to the enemies thereof. **But Congress may by a vote of two-thirds of each House, remove such disability.**

U.S. Const. amend. XIV, § 3 (emphasis added).

Federal statutes:

Sec. 14. *And be it further enacted*, That whenever any person shall hold office, except as a member of Congress or of some State legislature, contrary to the provisions of the third section of the fourteenth article of amendment to the Constitution of the United States, **it shall be the duty of the district attorney** of the United States for the district in which such person shall hold office, as aforesaid, **to proceed against such person, by writ of quo warranto**, returnable to the circuit or district court of the United States in such district, and to prosecute the same to the removal of such person from office; **and any writ of quo warranto** so brought, as aforesaid, **shall take precedence of all other cases on the docket of the court** to which it is made returnable, and shall not be continued unless for cause proved to the satisfaction of the court.

Enforcement Act of 1870, ch. 114, §14, 16 Stat. 140, 143 (1870) (emphasis added).

District of Columbia Code provisions:

§ 16–3501. Persons against whom issued; civil action.

A quo warranto may be issued from the United States District Court for the District of Columbia in the name of the United States **against a person who within the District of Columbia usurps**, intrudes into, or unlawfully holds or exercises, a franchise conferred by the United States or **a public office of the United States**, civil or military. **The proceedings shall be deemed a civil action.**

§ 16–3502. Parties who may institute; ex rel. proceedings.

The Attorney General of the United States or the United States attorney may institute a proceeding pursuant to this subchapter on his own motion **or on the relation of a third person**. The writ may not be issued on the relation of a third person except **by leave of the court**, to be applied for by the relator, by a petition duly verified setting forth the grounds of the application, or until the relator files a bond with sufficient surety, to be approved by the clerk of the court, in such penalty as the court prescribes, conditioned on the payment by him of all costs incurred in the prosecution of the writ if costs are not recovered from and paid by the defendant.

§ 16–3503. Refusal of Attorney General or United States attorney to act; procedure.

If the Attorney General or United States **attorney refuses to institute a quo warranto proceeding** on the request of a person interested, **the interested person may apply to the court** by certified petition for leave to have the writ issued. **When, in the opinion of the court, the reasons set forth in the petition are sufficient in law, the writ shall be allowed** to be issued by any attorney, in the name of the United States, on the relation of the interested person on his compliance with the condition prescribed by section 16-3502 as to security for costs.

D.C. Code § 16-3501-03 (emphasis added).